2025 P Cr. L J 1318

[Lahore]

Before Asjad Javaid Ghural, J

MUNEEB RIAZ---Petitioner

Versus

The STATE and another---Respondents

Crl. Misc. No. 63844-B of 2024, decided on 30th October, 2024.

Criminal Procedure Code (V of 1898)---

----S. 497---Prevention of Electronic Crimes Act (XL of 2016), Ss. 20, 21 & 24--- Harassing and blackmailing a woman, sharing edited images of woman over social media---Bail, refusal of---Complainant alleged that petitioner-accused edited photographes of his sister and mother converting the same into their nude pictures; sent the same to the complainant on his WhatsApp number; created a WhatsApp group and threatened to upload the same on social media---Accused-petitioner was nominated in the crime report with the specific role of editing family pictures of sister and mother of the complainant and converting the same into nude one and sent the same to their family with the threat to upload the same on social media for the public at large---Petitioner was arrested in the case on the same day and after inspection, his mobile phone was found containing nude edited pictures of sister and mother of the complainant, which was taken into possession and sent to the lab for forensic analysis---As per Initial Technical Analysis Report, objectionable and edited content of the victim and pornographic material was found in the gallery, which were found to have been shared to a phone number through WhatsApp---Petitioner was found fully involved in the occurrence during investigation based on technical report as well as other material in the statements of the witnesses recorded under S.161 Cr.P.C---Petitioner had not only put the dignity and honour of the ladies at stake but also spoiled their lives---Offence with which the petitioner had been charged, did not attract the prohibitory limb of S.497 Cr.P.C and in the offences not falling under such prohibition, bail was granted as a rule in many a cases, but this was never considered as a universal rule and compulsion over the Court rather it depended upon facts and circumstances of each case---In the instant case, the petitioner had victimized not only a young girl in revenge of taking divorce before Rukhsti but also her mother and harmed their reputation and privacy explicating their images in the form of edited nude photos and then shared the same to their relatives i.e. the brother/son---Such fact alone made the case of the petitioner an exception and extra ordinary circumstance for refusal of bail---Thus, the petitioner was not entitled to the concession of post arrest bail---Bail petition was dismissed, in circumstances.

Muhammad Siddique v. Imtiaz Begum and others 2002 SCMR 442; Malik Muhammad Tahir v. The State and another 2022 SCMR 2040; Fakhar Zaman v. The

State and another 2023 PCr.LJ 496 and Muhammad Haseeb v. The State and another 2024 PCr.LJ 1462 rel.

Zaheer Nawaz for Petitioner.

Ch. Imran Qadir Bhindar for the Complainant.

Shakeel Ahmad Shahzad, DAG and Sheeraz Khalid, A.A.G. along with Jahanzaib, Inspector/FIA for the State.

ORDER

ASJAD JAVAID GHURAL, J.---Through instant petition under Section 497 Cr.P.C., petitioner Muneeb Riaz has sought post arrest bail in case FIR No.57/2024 dated 29.07.2024, in respect of offence under Sections 20, 21 and 24 of the Prevention of Electronic Crimes Act, 2016, registered at Police Station, FIA Cyber Crime Circle, Gujranwala.

2. Precisely, the prosecution story was that the complainant's sister was married with the petitioner but before Rukhsati, they obtained divorce from him through Court due to his bad character. It was alleged that the petitioner edited photographs of sister and mother of the complainant converting the same into their nude pictures, send the same to the complainant on his WhatsApp number, created a WhatsApp group and threatened them to upload the same on social media. Hence, this case was registered.

3. I have heard learned counsel for the petitioner, learned Law Officers appearing for the State assisted by learned counsel for the complainant and perused the record.

4. The petitioner is nominated in the crime report with the specific role of editing family pictures of sister and mother of the complainant and converted the same into nude one and send the same to their family with the threat to upload on social media for the public at large. The petitioner was arrested in this case on the same day i.e. 29.07.2024 and after inspection, his mobile phone was found containing nude edited pictures of sister and mother of the complainant, which was taken into possession and sent to the lab for forensic analysis and as per Initial Technical Analysis Report dated 30.07.2024, objectionable and edited content of the victim and pornographic material was found in the gallery, which were found to have been shared to phone number +923179364499 through WhatsApp. The petitioner was found fully involved in this occurrence during investigation based on technical report as well as other material in the statements of the witnesses recorded under Section 161 Cr.P.C. The petitioner has not only put the dignity and honour of the ladies at stake but also spoiled their lives.

5. Yes, the offence with which the petitioner has been charged, does not attract the prohibitory limb of Section 497 Cr.P.C. and in the offences not falling under the prohibition, the bail is granted as a rule in many a cases by the Apex Courts but it has never been considered as universal rule and compulsion over the Court rather it depends upon facts and circumstances of each case. Here in the instant case the petitioner has victimized not only a young girl in revenge of taking divorce before Rukhsti but also her mother and harmed their reputation and privacy explicating

their images in the forum of edited nude photos and then shared the same to their closest and sensitive relative i.e. the brother/son. This fact alone makes case of the petitioner being exceptional and extra ordinary circumstance of the case for refusal of bail. Reliance is placed on case reported as 'Muhammad Siddique v. Imtiaz Begum and others' (2002 SCMR 442) and "Malik Muhammad Tahir v. The State and another (2022 SCMR 2040)". The same view was subsequently adopted in case titled 'Fakhar Zaman v. The State and another (2023 PCr.LJ 496) and 'Muhammad Haseeb v. The State and another (2024 PCr.LJ 1462) [Islamabad]. Keeping in view the facts and circumstances of the case, the petitioner is not entitled to the concession of post arrest bail at this early stage.

In view of what has been discussed above, this petition is without any merit, the same stands dismissed.

JK/M-136/L Petition dismissed.

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